

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
July 9, 2026
8:30 a.m./1:30 p.m.

3. BRITINI JOHNSON V. PATRICK JOHNSON

23FL1116

On April 17, 2026, Respondent filed a Request for Order (RFO) seeking custody and visitation orders and child support orders. There is no Proof of Service for the RFO or any of the other required documents, nevertheless, Petitioner filed and served her Responsive Declaration to Request for Order on May 6th thereby waiving any potential objection to service.

The parties attended Child Custody Recommending Counseling (CCRC) on May 15, 2026. They reached some agreements but could not agree on all issues therefore, a report with agreements and recommendations was prepared on May 18, 2026. It was mailed to the parties on May 19th.

Petitioner filed her Income and Expense Declaration on June 3, 2026. It was served the same day.

On June 23rd, Respondent filed another Income and Expense Declaration and a declaration. There is no Proof of Service for either document.

Also on June 23rd, Petitioner filed and served Petitioner's Objection to Respondent's Reply Declaration and Respondent's [sic] Reply Declaration to CCRC Report Dated 5/18/2026.

Because Petitioner filed an objection to Respondent's June 23rd declaration but did not raise the issue of service, the court finds that she has actual knowledge of the declaration and any such objection to service has been waived therefore, the court is considering the declaration to the extent Petitioner's objections have not been sustained. The same does not go for Respondent's Income and Expense Declaration. There is no indication that Petitioner was ever served with that document therefore the court cannot consider it.

Petitioner's objections are sustained in their entirety. The court is considering only the admissible portions of the first five pages of Respondent's reply declaration.

On June 30th, Respondent filed a Reply Declaration of Patrick Johnson in Support of Request for Order. It was served by mail on June 29th.

Respondent asks to change the parenting schedule in accordance the proposed schedule in his declaration. He asks that the holiday schedule and all other custody orders remain the same. He further requests modification of child support based on the updated

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schedule and the parties' current income. He asks that the court set support to guideline or adopt his proposed step-up support schedule. He further asks that he be obligated to pay only 50% toward one mutually agreed upon extracurricular activity per child. Finally, he asks that he be given a credit or reimbursement for overpayment of support.

Petitioner asks the court to deny Respondent's request to modify the parenting plan and order guideline child support based on the actual parenting time exercised. She further asks that the court order the parties to communicate on Talking Parents only and clarify that the parties are not required to share the email account pjohnson0913@gmail.com. She asks that the account be assigned to Respondent or deleted in its entirety.

The court has read and considered the filings as outlined above. The court adopts the agreements and recommendations set forth in the May 18, 2026 CCRC report with one small modification regarding the exchange locations. The Exchange Location section on page 8 shall be amended to read as follows: For any non-school exchanges at the beginning of Respondent's parenting time, drop off shall occur at Herbert Green Middle School (address 3781 Diamond Rd., Placerville, CA 95667); at the beginning of Petitioner's parenting time, drop off shall occur at the Camino Post Office (address 4129 Carson Rd., Camino, CA 95709)."

The request to modify support is denied due to Respondent's failure to properly serve a current Income and Expense Declaration with supporting documents.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #3: PETITIONER'S OBJECTIONS ARE SUSTAINED IN THEIR ENTIRETY. THE COURT IS CONSIDERING ONLY THE ADMISSIBLE PORTIONS OF THE FIRST FIVE PAGES OF RESPONDENT'S REPLY DECLARATION.

THE COURT DOES NOT FIND A CHANGE IN CIRCUMSTANCES SUFFICIENT TO WARRANT A CHANGE IN THE CUSTODY AND VISITATION ORDERS AS STATED IN THE JUDGMENT. THE COURT IS ADOPTING THE AGREEMENTS AND RECOMMENDATIONS SET FORTH IN THE MAY 18, 2026 CCRC REPORT WITH ONE SMALL MODIFICATION REGARDING THE EXCHANGE LOCATIONS. THE EXCHANGE LOCATION SECTION ON PAGE 8 SHALL BE AMENDED TO READ AS FOLLOWS: FOR ANY NON-SCHOOL EXCHANGES AT THE BEGINNING OF RESPONDENT'S PARENTING TIME, DROP OFF

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SHALL OCCUR AT HERBERT GREEN MIDDLE SCHOOL (ADDRESS 3781 DIAMOND RD., PLACERVILLE, CA 95667); AT THE BEGINNING OF PETITIONER'S PARENTING TIME, DROP OFF SHALL OCCUR AT THE CAMINO POST OFFICE (ADDRESS 4129 CARSON RD., CAMINO, CA 95709)."

THE REQUEST TO MODIFY SUPPORT IS DENIED DUE TO RESPONDENT'S FAILURE TO PROPERLY SERVE A CURRENT INCOME AND EXPENSE DECLARATION WITH SUPPORTING DOCUMENTS.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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4. SAMUEL MATTILA V. KRISTIANNA HEIMAN

PFL20210271

On March 10, 2026, Petitioner filed a Request for Order (RFO) seeking custody and visitation orders and attorney's fees. He filed a declaration of Rebecca Esty-Burke concurrently therewith. Both documents were served by mail on March 30th however the Notice of Tentative Ruling was not served, nor was the blank FL-320.

On March 27, 2026, Respondent filed an RFO also seeking custody and visitation orders. There is no Proof of Service for this RFO.

The parties filed a Stipulation Re: Vacation and Continuance of Court Date on April 15th thereby continuing the hearing date on the RFO to the present date.

Petitioner filed and served a Responsive Declaration to Request for Order on May 18th.

The parties attended Child Custody Recommending Counseling (CCRC) on April 13, 2026. They were unable to reach any agreements therefore, a report with recommendations was prepared on May 26th. It was mailed to the parties on May 27th.

Petitioner filed his RFO requesting an order permitting him to take the minor child on vacation. This issue was resolved by the stipulation. However, he further requests the current out-of-state travel order be modified to allow for such travel upon 30 days' written notice to the other party along with a full itinerary including travel dates, destination, lodging information and contact details with no agreement required. He requests \$1,500 for the time and expense of filing the RFO.

According to Petitioner, he was not served with Respondent's RFO until after the CCRC appointment and, as stated previously, there is no Proof of Service for this RFO. Accordingly, Respondent's RFO is dropped from calendar due to lack of proper service. The court is not adopting the recommendations set forth in the CCRC report as the CCRC appointment was set as a result of Petitioner's RFO, not Respondent's, and yet the report did not address the issues raised in Petitioner's RFO. Furthermore, Petitioner was not served with Respondent's RFO until after the CCRC appointment and therefore, he was not given proper notice to prepare and address the issues raised prior to the CCRC appointment.

Regarding the request to modify the out-of-state travel order, the request is granted. The court does find it to be in the best interest of the minor to modify the existing vacation order as follows. Each party may take a vacation with the minor up to two weeks every year.